



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

August 11, 2020, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

COMMISSION MEMBERS PRESENT: Christopher Pengra, Erin Wells, Rich Wood, and Brett Wright. Commissioner Matthew Everett was excused.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Pete Kane, Long-Range Planning Manager; Michael Hadley, Planning Manager; Jessa Porter, Planner; Fionnuala Kofoed, City Recorder; and Elizabeth Fewkes, Recording Secretary.

Commissioner Wood called the meeting to order at 5:31 p.m.

1. Discussion Items

1.A. DISCUSSION ITEM – Zoning Map Amendment for Commercial Properties in The Ranches

Long-Range Planning Manager Pete Kane explained staff is proposing to rezone the commercial properties in the Ranches because the master development plan (MDP) and agreement (MDA) have expired. The proposed zone designations adhere to current zone designations and the Future Land Use Plan while preserving the intent of the previous MDP. The proposal rezones 23 commercial properties located within the Ranches portion of the City, ten of which have already been developed as commercial properties.

Mr. Kane stated the properties were previously zoned Village Core commercial under the MDP. Staff proposes rezoning the properties adjacent to Pony Express Parkway and the intersection of Pony Express Parkway and Ranches Parkway to Commercial Neighborhood (CN) and the properties adjacent to Wride Memorial Highway to Commercial Community (CC). Both zones are compatible with the Commercial Community land use designation in the General Plan; however, the CN zone has fewer permitted uses and a building height maximum of 35 feet versus 50 feet maximum height permitted in the CC zone and differing setbacks. The currently constructed buildings within the proposed CN zone all fit within the zone restrictions.

Mr. Kane explained staff recommends the CN zone for the area of land on the north of Pony Express Parkway across from Hidden Hollow Elementary School due to the topographical challenges to develop the property and the proximity to residential uses, including the Foothill Residential land use designation adjacent to the northwest. He said the amount of developable land available in the parcel has not yet been calculated.

Commissioner Pengra suggested zoning the Hidden Valley parcel to CC due to the size of the area. Also, he believes the topography is not prohibitive, other than cost increase, which will likely delay the development of the area.

Commissioner Wood concurred with Commission Pengra due to the size and location of the land near a major corridor; however, it might allow undesirable uses, and a developer could request a rezone for CC uses should the area be zoned CN.

Commissioner Wright stated his preference for the CN zone due to concerns regarding use buffering between the Foothill Residential and the commercial area.

Commissioner Wells expressed her preference for the CN zone due to concerns regarding the surrounding residential and educational uses and the potential for resident concerns. She stated she may support some CC development depending upon the desired use.

Commissioner Wood stated the natural topography of the land provides a relatively flat portion of land within the commercial area with natural undevelopable hillside buffering between the commercial and residential areas.

Community Development Director/Assistant City Administrator Steve Mumford explained staff recommended CN as the uses permitted in the CC zone include hotels, general retail, auto repair shops, autobody shops, and larger grocery store, and recommended for the Commissioners to consider the desired uses for the area taking into account the proximity of the land to Hidden Hollow Elementary School.

Commissioner Pengra stated the Foothill Residential area might be undevelopable without significant blasting, which is unlikely to be approved.

Discussion ensued regarding rezoning all or part of the Hidden Valley parcel to CC and associated concerns and potential solutions regarding blasting, height allowances, buffering, use restrictions, existing residents, and traffic.

Mr. Kane stated he will create a proposal for each zone option for the Planning Commission and City Council to review and vote on at a future meeting.

Commissioner Wells recommended considering Commercial Regional (CR) zoning for parcels along Wride Memorial Highway.

Commissioner Wood expressed concern the parcels of land were not large enough for CR and the need for buffering for the adjacent single-family homes surrounding portions of the properties, especially the homes on Inverness Lane which front on the commercial property, and the traffic increase to Inverness Lane.

Commissioner Pengra recommended a landscape buffer between the homes and the commercial development between Wride Memorial Highway and Inverness Lane to resolve traffic and aesthetic concerns.

Discussion ensued assessing trail or linear park buffering solutions along Inverness Lane.

1.B. DISCUSSION ITEM – Zoning Transition Table

Commissioner Wood requested feedback regarding appropriate commercial buffer use for the Foothill Residential land use, as the subject had arisen during the discussion of the previous item. The Commission determined a Commercial Neighborhood zone buffer to be the appropriate adjacent use. Commissioner Wood explained the up and down transitioning standards in the document. He stated the Zone Transitioning Table will be beneficial to applicants to determine the desired adjacent uses and requested for the table to return to the next meeting for a vote of recommendation to the City Council.

Commissioners Pengra and Wells requested more time to consider and evaluate Commissioner Wood's changes and additions to the table.

Commissioner Wright inquired how the adoption of the table standards will impact existing properties.

Mr. Kane explained a preamble to the Zone Transitioning Table would help to explain that a relevant or equal zone will be considered for properties zoned under the previous standards, should the table be adopted.

Mr. Mumford stated he needed to examine the table in more detail and recommended a single category rather than separate transitioning up and transitioning down categories.

Commissioner Wood stated he separated the table into up and down transitioning categories to be in harmony with existing standards that use the same designations and referenced the lot size transition tables.

Mr. Mumford expressed favor for the increased flexibility in zone transitioning rather than a specific lot size and advocated for verbiage to allow for exceptions rather than being overly prescriptive.

Mr. Kane stated the table could be beneficial as it would set predictability regarding project approvals; however, he cautioned against undesirable outcomes should the table thoroughness be insufficient and expressed concern regarding the "distance from prohibited" column as those standards are contained elsewhere within Municipal Code standards.

Commissioner Wood verified the recommendation was to include the Zone Transitioning Table in addition to the lot size transition table. Commissioner Wells stated she is in favor of the table concept but concurred with Mr. Kane regarding the need to thoroughly review the table to mitigate unintentional undesirable outcomes.

1.C. DISCUSSION ITEM – Outstanding Zoning Districts

Commissioner Wood opened the item and requested feedback from commissioners as to whether they felt the Historic Preservation Zone should be changed to an overlay zone.

Commissioner Wright expressed support for the proposed Historic Preservation Overlay zone and advocated for the overlay to be applied to appropriate areas within the City.

Mr. Kane explained that zoning districts prescribe permitted land uses and some development rights, where an overlay zone adds an additional level of requirement, such as historical preservation, and may be applied over adjacent areas with different zones and land uses.

Commissioners Wells and Pengra voiced support for the Historic Preservation Overlay zone.

Commissioner Wood stated the City standards include a ridgeline protection standard prohibiting the development of land within 50 feet from the top of a ridge. He recommended adopting the standard as a Ridgeline Protection Zone.

Commissioner Pengra stated he is in favor of further exploration and approves of standards that remove ambiguity and prevent future conflict with developers.

Mr. Kane stated the advantage of adopting the existing standards as an overlay adoption will include the creation of a map that will identify the applicable areas. He encouraged an overlay, rather than an underlying zone, as an overlay would not impact other uses.

Commissioner Wright stated favor of the Ridgeline Protection Overlay Zone.

Mr. Mumford stated that staff will confer with the impacted property owners before finalizing the standards.

Commissioner Wood adjourned the work session at 6:33 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Wood called the policy session to order at 6:44 p.m.

2. Pledge of Allegiance

City Recorder Fionnuala Kofoed led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

Commissioner Pengra stated he has accepted a job as the Economic Development Director for West Jordan, Utah, and desired to disclose the information due to competition between West Jordan and Eagle Mountain City for some large industrial developments.

4. Approval of Meeting Minutes

4.A. July 28, 2020, Planning Commission Minutes

The Planning Commission requested grammatical edits and clarification regarding Commissioner Wells' statement.

MOTION: *Commissioner Wright moved to approve the July 28, 2020 minutes as discussed. Commissioner Pengra seconded the motion. Those voting aye: Brett Wright, Rich Wood, Christopher Pengra, and Erin Wells. The motion passed with a unanimous vote.*

5. Status Report

Planning Manager Michael Hadley stated the City Council passed the Marketplace at Eagle Mountain Town Center rezone to Commercial Community. The Rush Creek Development Concept Plan was presented during work session and received feedback regarding Councilmember concerns.

6. Action and Advisory Items

6.A. Marketplace at Eagle Mountain Town Center (Master Site Plan and Preliminary Plat)

Mr. Mumford presented the item. The 39-acre commercial project was tabled by the Planning Commission with a 3 to 1 vote, with one abstention due to absences on June 9, 2020. The Planning Commission concerns included the residential rezone not being approved by the City Council, the proposed density of the residential area, and the need for a connecting road to neighborhoods in the northwest corner.

The City Council approved the Commercial Community Rezone on August 4, 2020. The applicant has modified the master site plan to remove the proposed residential use and labeled the area as "future development." The additional modifications include a connecting road to Raven Way, a proposed masonry wall between the commercial sites and residential properties, and a trail connection.

Streetlights will be required along the internal road. Lighting plans, specs, and calculations will be required with the individual site plans and individual site plans will be required to include landscape plans for approval. The submitted landscape plan will need to be modified to add right-of-way landscaping design along interior public roads and trail system. The master site plan generally complies with standards by placing most of the parking to the rear or side of buildings and placing pad site buildings along the street edge. If deemed necessary, the City Engineer will require turn lanes and/or deceleration lanes. A road connection has been added to Raven Way. The masonry wall between the commercial and residential areas will create a corridor for the trail system. The stormwater basin area and future development area are not depicted with walls and need to be consistent with the other areas. Staff recommends a development agreement detailing improvement and timing of the right-of-way improvements, trail, landscaping, masonry

walls, and detention basin. Staff recommended selling or trading a parcel on the southwest corner of the property to the developer.

Staff recommends the Planning Commission recommend approval of the Marketplace at Eagle Mountain Town Center Master Site Plan and Preliminary Plat to the City Council for the reasons outlined in the staff report, and the meeting, with the following conditions: A development agreement shall be prepared to be approved by the City Council, detailing the improvement and timing of the right of way improvements (asphalt, curb, and gutter, trail, landscaping, turn lanes, streetlights, etc.), the project trails, and landscaping, the masonry walls, and the improvement of the detention basin. Deeds shall be prepared by the applicant for the triangle property in the southwest corner of the project. The landscaping plan shall be revised to include street trees and landscaping along the interior public roads, the trail areas, and the detention basin, in addition to the Pony Express Parkway and Eagle Mountain Boulevard rights-of-way. The plan shall be reviewed for approval by the Planning Director and Parks Director. The building elevations shall be revised to comply with EMMC 17.72 by adding additional architectural detailing, building materials mixture, and additional horizontal articulation/modulation. Special attention shall be given to fixing the rear grocery store elevation and the flat stucco portions of the retail building (sides and front). The applicants shall submit grading/drainage/erosion plans and lighting plans with each site plan application. As much as possible, buildings shall be located at or near the minimum front setback line, with pedestrian access leading to the primary entrance and landscaping between the building and the street. A minimum 20-foot wide area on the west side of the project shall be deeded to the City and improved with a trail and landscaping. A wall shall be built between the commercial and residential areas along with the development of each commercial site. Updated utility plans shall be submitted by the applicant for approval by the City Engineer. A master site plan amendment and preliminary plat amendment shall be required prior to any site plan approvals of the "future development area."

Mr. Mumford explained the City owns the stormwater parcel and the area retains water from the commercial development and the Autumn Ridge and Eagle Park neighborhoods.

Commissioner Wood inquired regarding the orientation of Pads A, B, and C due to headlight and accessibility concerns and the rear of the building fronting on Pony Express Parkway. Mr. Mumford stated commercial standards require that if the rear of the buildings front on the roadway, the façade of the building must be improved to appear similar to the building entrance.

Commissioner Wells expressed concern regarding the building elevations aesthetics and that the smaller buildings renderings are not in harmony with the grocery store anchor. She stated her preference for the City to maintain ownership of the parcel on the southwest corner to provide a buffer between the commercial and residential uses.

Mr. Mumford stated the trail could be located on either the residential or the commercial side of the masonry wall. Depending upon placement, spacing, and breaks in the masonry wall, a corridor would be created between the residential fences and the masonry wall.

Discussion ensued regarding the location of existing fencing, potential placement of the masonry wall, trail connectivity, maintenance, and safety concerns.

Commissioner Wright expressed concern regarding the amount of signage and deficiencies in the architectural design standards.

Commissioner Pengra stated the rear elevations need to be improved to meet Municipal Code and expressed concern regarding the unspecified future development due to the inability to know the uses that will be developed adjacent to the rear of the property. He recommended a concrete masonry unit (CMU) wall behind the grocery store to screen the necessary unsightly elements required for grocery store operation from the future development. He concurred with Commissioner Wright's suggestion to install the CMU wall abutting the existing fencing along Osprey Way and the west side of the existing home, with openings to allow for trail access. He requested clarification regarding staff's landscaping recommendation due to the likelihood of the plan changing.

Mr. Mumford explained the staff recommendation for a landscape plan was to create continuity between the various development sites, especially along Pony Express Parkway and Eagle Mountain Boulevard.

Commissioner Pengra recommended including general landscaping requirements in the development agreement with flexibility should the plan change to prevent onerous, undesirable requirements based upon outdated plans.

Commissioner Wright concurred with Commissioner Pengra regarding the landscaping plan. He stated concern regarding the timing of the CMU walls due to the potential delays and recommended requirements in the development agreement to install the CMU wall to buffer construction activities from adjacent residential uses.

Discussion ensued regarding precedence for CMU wall installation requirements for commercial properties.

Mr. Mumford verified as a public hearing had been held for the project and only minor changes were made on the project, a public hearing is not needed.

Applicant representatives Bill Gaskill stated the elevations do not adequately represent the horizontal articulation of the building. He said the architect had designed other buildings in the City and the design meets City standards. He expressed his willingness to make any changes needed to meet Municipal Code. He said the grocer is hesitant to pay for plan changes before knowing the project and zoning are approved. Mr. Gaskill explained that the necessary elements for grocery store operations including delivery truck access to the delivery bay, hand truck delivery access ramps, ramps, and trash compactors prevent horizontal articulation. He expressed his willingness to increase vertical articulation.

Mr. Gaskill explained the retail buildings are oriented with the rear of the building fronting along Pony Express Parkway and Eagle Mountain Boulevard for signage on the public right-of-way and visibility. He stated equipment, such as gas and power meters, are located on the side of the building when permitted. The site plans for the individual buildings require Planning

Commission approval and can be evaluated at that time. The signage plan includes a shopping center sign at each entrance for the buildings without public right-of-way frontage and permits one monument sign per business; the sign size will vary depending upon the tenant.

Mr. Gaskill expressed his willingness to install CMU buffering as directed by the City and concurred with the stated concerns. He suggested options regarding trail installation to address concerns and offered to convert the retention pond to a detention pond through connecting and pumping to the City sewer system to increase efficiency and prevent long-term water storage.

Mr. Gaskill stated the elevation renderings are opposite from the building site plan layout and explained the delivery truck access. He stated the grocer is willing to improve the rear aesthetics of the walls through banding or wrapping the corners of the building with columns. The grocer desires to discuss their logistical needs and limitations with the Planning Commission during the site plan approval.

Commissioner Wood suggested increasing roofline height variance to improve articulation while preserving the functionality of the building.

Commissioner Wright verified each location, including the grocery store, will require an individual site plan approval. Mr. Mumford recommended for the Planning Commission to direct the applicant regarding the desired elements for the retail buildings.

Mr. Gaskill stated the grocery store site plan will be similar to the presented concept plan with the addition of landscaping, lighting, etc.

Commissioner Wright expressed approval for the layout of the master site plan including building orientation with buildings fronting on Pony Express Parkway and Eagle Mountain Boulevard; however, he reiterated concerns regarding the building elevations and advocated for the recommendation to the City Council to include improved elevations.

Commissioner Pengra stated his desire to recommend approval of the concept plan to the City Council, due to the site plan returning to the Planning Commission, with allowances for the practical needs for the grocery store. He advocated to exclude onerous requirements and reiterated his recommendation for a CMU wall to screen the necessary, but unsightly elements on the rear of the grocery store.

Mr. Gaskill stated five to six businesses are considering development on the property within the next year but are contingent upon the development of the anchor grocery store.

Commissioner Pengra suggested conditioning the timing for the construction of the CMU wall on the north and west sides of the property to the installation of the interior road.

Mr. Gaskill stated the installation of the interior road will occur later in the project due to the width of the interior road being determined by adjacent uses. He stated the road will be installed before the buildings in that area. He stated the rear of the grocery store will be 500 to 600 feet from the existing homes.

Commissioner Pengra stated his reasoning for recommending conditioning the CMU wall to the installation of the interior road is due to the resulting noise nuisance concerns for the residents of Autumn Ridge and Eagle Park.

Mr. Gaskill clarified the interior road installation and the connections to Raven Way and Osprey Way will occur at a future date during the development of the west and rear portions of the property after the approval of the congruent site plans.

Commissioner Wood expressed concern regarding the timeframe for the installation of the interior road due to limiting grocery store access to Pony Express Parkway and Eagle Mountain Boulevard and the potential traffic issues.

Mr. Mumford stated the roundabout at the intersection of Pony Express Parkway and Eagle Mountain Boulevard reduces left-hand turn concerns and that the City Engineer will address traffic concerns during the grocery store site plan approval.

Discussion ensued regarding traffic concerns and potential solutions.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the Marketplace at Eagle Mountain Town Center master site plan and preliminary plat with the following conditions:*

- 1. A development agreement shall be prepared to be approved by the City Council, detailing the improvement and timing of the right-of-way improvements (asphalt, curb, and gutter, trail, landscaping, turn lanes, streetlights, etc.), the project trails and landscaping, the masonry walls, and the improvement of the detention basin. Deeds shall be prepared by the applicant for the detention basin relocation and the triangle property in the southwest corner of the project. Also, a requirement that a CMU wall be required to be constructed along the north and west borders of the development to buffer homes on Osprey Way, Searle Lane, and Robbin Circle, and that the wall be constructed no later than the time that the interior road is constructed;*
- 2. Landscaping standards shall be prepared and incorporated into the development agreement for street trees and landscaping along the interior public roads, the trail areas, and the detention basin with the plan to be reviewed for approval by the Planning Director and Parks Director;*
- 3. The building elevations shall be revised to comply with EMMC Chapter 17.72 by adding additional architectural detailing, building materials mixture, and additional vertical articulation/modulation;*
- 4. Applicants shall submit grading/drainage/erosion plans and lighting plans with each site plan application;*
- 5. As much as possible, buildings shall be located at or near the minimum front setback line, with pedestrian access leading to the*

primary entrance and landscaping between the building and the street;

- 6. A minimum 20-foot wide area on the west side of the project shall be deeded to the City and improved with a trail and landscaping;*
- 7. A wall shall be built between the commercial and residential areas along with the development of each commercial site;*
- 8. Updated utility plans shall be submitted by the applicant for approval by the City Engineer; and*
- 9. A master site plan amendment and preliminary plat amendment shall be required prior to any site plan approvals of the future development area.*

Commissioner Wright seconded the motion. Those voting aye: Brett Wright, Christopher Pengra, and Erin Wells. Those voting nay: Rich Wood. The motion carried with a vote of 3:1.

6.B. PUBLIC HEARING – B&H Property (Rezone and General Plan Amendment)

Mr. Hadley presented the item. The property is located west of the Brylee Estates and north of Brandon Park on approximately 162 acres and is currently zoned agricultural. The General Plan Designation is a combination of Employment Center/Campus (ECC) and Neighborhood Residential 1 (NR1). The proposal retains the General Plan NR1 designations including R1, R2, and R3 zones on 80.16 acres of the property. Neighborhood Residential 1 zoning allows the applicant to propose single-family lots ranging from 6,500 square feet to 1/3 acre. The plan designates 80.17 acres of the northern property as Business which Mr. Hadley noted would be the Business Park land use designation.

A proposed future freeway intersects the north and west portion of the property. Aviator Avenue, on the south of the proposal, will most likely access the proposed freeway. The eastern and middle parcels of the proposal comply with the General Plan NR1 designation. The west portion complies with the General Plan, except for the northwest corner which is designated as ECC on the Future Land Use Map. The north portion is proposed as Business, which conflicts with the General Plan ECC designation.

Municipal Code rezone requirement criteria stipulates the requested zones shall adhere to the General Plan, the proposed uses and densities are compatible with adjacent and current land uses, the proposed use accommodates public services, traffic generation is within the capabilities of streets serving the property, and the proposed use is not expected to have significant negative impacts on surrounding property values. Mr. Hadley presented the motion options to recommend approval of all or a portion of the area, to table, or to deny the rezone. Staff recommended against denying the rezone request.

Applicant representative for B&H Properties Andy Flamm explained the proposed plan has changed substantially and that the northern property designated as “business area” is not part of the rezone request at this time. The only requested amendment to the General Plan is for a reclassification of land use of the southwestern portion from ECC to residential. He said the potential commercial uses for the north property are not ready to develop at this time. He stated

the previous plan presented in September 2019 did not receive Commission or Council support. After the public meeting, he received feedback individually from City Councilmembers. Several of the Councilmembers and Commissioners Wright and Wood advocated against the multifamily products in the original proposal. The new plan excludes multifamily units and has an overall density of 2.6 units per acre. He stated the transportation plan is generally not included in a concept plan and will be included with the site plan.

Commissioner Wood verified the Brylee Estates lots sizes to the east of the project are 4,500 to 8,000 square feet. He expressed concern regarding placing single-family lots along a major highway.

The applicant stated the proposal offers comparable uses to the adjacent developments currently in the area and said they are willing to consider smaller acre residential uses for buffering between larger lots and the highway.

Commissioner Wood noted that the shape of the land use designation on the southwest portion of the property presents development challenges and accordingly, stated his willingness to consider a compromise for the area.

Commissioner Wells verified the staff recommendations were regarding the southern residential portion rezone without consideration of the future business area to the north. She stated her preference for multifamily along the highway and expressed sympathy that the applicant had removed the multifamily units due to previous feedback.

Commissioner Wright concurred the land near the transportation corridor needs to be reserved for business or ECC uses. He encouraged greater creativity in the lot layout and sizes. Mr. Flamm stated the site plan will have improved layout design.

Commissioner Wood expressed concern regarding transportation access to the southwest portion of the parcel, should the residential rezone be denied.

Discussion ensued regarding transportation access concerns and potential solutions including rezoning options.

Commissioner Wood noted multifamily products are excluded from the ECC zone. He expressed concern and cautioned against creating or amending Municipal Code according to personal preference. He expressed concern regarding permitting R1 zoning near the major roadways due to noise concerns and the future negative impact of the roadway.

Commissioner Pengra stated the Utah Department of Transportation has not finalized plans or the location for the proposed highway. He expressed concern regarding the burden to the applicant to address conflicting feedback from the Commission and the City Council. Due to the unfinalized location and the timing of the installation of the proposed highway, he stated he has no objections to the concept plan.

Mr. Mumford clarified the proposed highway is a part of phase three of the Mountainland Association of Governments plan scheduled for 2041 to 2050 and a study has yet to be conducted nor has the right-of-way land been purchased for the installation of the proposed highway.

Commissioner Wood opened the public hearing at 8:56 p.m. No comments were submitted to the City Recorder's Office and no public was in attendance to make comment. As there were no comments, Commissioner Wood closed the hearing.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the B&H Property rezone and General Plan amendment. The motion died for lack of a second.*

MOTION: *Commissioner Wright moved to table the B&H Property rezone and General Plan amendment with instruction to reconsider or redesign the Residential 1 portion on the west side of the property with multifamily, business park, or employment campus uses. Commissioner Wells seconded the motion. Those voting aye: Brett Wright, Christopher Pengra, and Erin Wells. Those voting nay: Rich Wood. The motion carried with a vote of 3:1.*

Commissioner Pengra clarified his affirmative vote to table the item was to allow the application to move forward.

Commissioner Wood recessed the meeting at 9:02 p.m.

6.C. PUBLIC HEARING – Development Code Amendment for Residential Land Use Table (EMMC 17.25.030)

Commissioner Wood reconvened the meeting at 9:06 p.m.

Planner Jessa Porter presented the item. The request amends the City's Residential Land Use Table in EMMC Chapter 17.25.030. The proposed Municipal Code amendment creates a footnote attached to the row regarding chickens clarifying that roosters are permitted in the agriculture zone and prohibited in all other zones. Staff recommends the Planning Commission recommend approval of the proposed amendment to the City Council as presented or with minor changes as agreed upon at the meeting.

Ms. Porter verified that roosters are currently prohibited in Eagle Mountain due to their exclusion from Municipal Code.

Commissioner Wood stated that the standards permitting chickens does not specify hens or roosters.

Commissioner Wells advocated for permitting roosters on larger lots and stated several Utah municipalities permit roosters on lots of ½ or one acre and some cities ban roosters. She recommended permitting roosters in the RA1, RA2, and RD1 zones.

Commissioner Wood opened the public hearing at 9:10 p.m.

Resident Fionnuala Kofoed stated she lives on a half-acre parcel surrounded by lots of varying sizes. One of her neighbors locates their chickens at the farthest corner from their residence; however, the location is close to neighboring residences. She can hear the rooster at her residence and some of her neighbors have complained about the resulting auditory nuisance.

Commissioner Wood closed the public hearing at 9:12 p.m.

Commissioner Wood stated during his research, he determined roosters are used to raise chickens as a food source. He stated he did not desire to deprive residents of a food source and researched ways to address the noise concerns. The Humane Society lists the option of a crow collar to reduce the crow volume. He expressed his desire to permit agricultural uses and suggested tabling the item in order to do more research. He said Municipal Code does not limit the number of chickens and noted the difficulty in determining the sex of chicks.

Commissioner Wells stated roosters are used to increase and protect the flock. A rooster's crow serves as a warning and a collar would reduce that purpose.

Commissioner Pengra advocated for permitting roosters and agreed to limit roosters to half-acre or larger lots. He advocated for neighbors to resolve or report conflicts as they arise.

Discussion ensued regarding permitting roosters and potential lot size restrictions.

Ms. Porter stated the Code Enforcement Officer has had nine rooster complaint calls during the past two months and she receives a couple of rooster complaint calls a week.

Commissioner Wright stated he generally agrees with the thoughts expressed by the other Commissioners. He noted the difficulty in defining a nuisance and said he does not want to ignore valid concerns expressed by residents.

Ms. Porter noted the complaints are reported from locations throughout the City and that Code Enforcement has been unable to address concerns due to the exclusion of roosters from Municipal Code. Due to the number of and frequency of complaints, Code Enforcement requested support via Municipal Code to be able to better respond to and address resident concerns.

Discussion ensued regarding the appropriate zone locations to permit roosters and concerns regarding existing requirements and creating non-compliance through standard creation of existing rooster owners.

MOTION: *Commissioner Wells moved to recommend approval to the City Council of the Development Code Amendment for Residential Land Use Table (EMMC 17.25.30) with the amendment that roosters are allowed in agriculture, RA1, RA2, and RD1 zone. Commissioner Wood seconded the motion. Those*

voting aye: Brett Wright, Rich Wood, and Erin Wells. Those voting nay: Christopher Pengra. The motion carried with a vote of 3:1.

Commissioner Pengra clarified his nay vote was due to his desire to allow roosters on smaller lots as well.

6.D. PUBLIC HEARING – Development Code Amendment for Special Use Standards

Mr. Kane presented the item. The City Council recently approved amendments to the use tables in various zoning districts and created a permitted special use classification. Uses set as a special use must meet standards established within EMMC 17.75. Municipal Code was amended to include language that special uses were considered prohibited until special use standards were created and added to EMMC 17.75. The amendment revises the chapter in order to organize the expanded list of special uses and group them by use type. The amendment also includes proposed new language to be added to EMMC 17.10 Definitions to set the definitions for all special uses not currently defined in that chapter.

The proposed changes include the addition of 23 definitions, retaining any existing definitions in the chapter, restructuring the chapter into use-related sections that are then alphabetically organized, including an Applicability section that clarifies that the special uses must also comply with other relevant chapters in Title 17, adding in proposed regulations for 16 special uses, and updating language for some of the special uses currently in the chapter.

Staff proposes for the Planning Commission to recommend approval of the proposed code amendments to EMMC 17.10 and 17.75 to the City Council as presented or with minor changes as agreed upon at the meeting.

Commissioner Wood opened the public hearing at 9:30 p.m. No comments were submitted to the City Recorder's Office and no public was in attendance to make comment. As there were no comments, Commissioner Wood closed the hearing.

Commissioner Wells stated she believed the outdoor sales and displays and outdoor storage requirements would be onerous for a nursery or garden owners.

Mr. Kane clarified that the standards only applied to outdoor storage, not outdoor sales.

Commissioner Pengra expressed concern regarding ambiguity in defining sales versus storage, as the needs may overlap.

Mr. Kane explained storage includes items that are not for sale and agreed to clarify the verbiage.

Commissioner Wood recommended that the standard definitions include the requirement for opaque screening.

MOTION: ***Commissioner Wood moved to recommend approval to the City Council of the Development Code Amendment for Special Use Standards EMMC***

Chapter 17.75. Commissioner Pengra seconded the motion. Those voting aye: Brett Wright, Rich Wood, Christopher Pengra, and Erin Wells. The motion passed with a unanimous vote.

7. Discussion Items
8. Next scheduled meeting
9. Adjournment

MOTION: *Commissioner Wells moved to adjourn the meeting at 9:38 p.m. Commissioner Wright seconded the motion. Those voting aye: Brett Wright, Rich Wood, Christopher Pengra, and Erin Wells. The motion passed with a unanimous vote.*

The meeting was adjourned at 9:38 p.m.

Approved by the Planning Commission on August 25, 2020.


Steve Mumford (S2017-2020-09-10-1427)

Steve Mumford, AICP
Assistant City Administrator/Community Development Director